

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Megan McCurdy	Team: Squad #13	CCRB Case #: 202310448	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☒ Injury
Incident Date(s) Saturday, 11/04/2023 7:54 PM	Location of Incident: 79th Precinct stationhouse	18 Mo. SOL 5/4/2025	Precinct: 79		
Date/Time CV Reported Sun, 11/05/2023 8:08 PM	CV Reported At: Other City agency	How CV Reported: On-line website	Date/Time Received at CCRB Sun, 11/05/2023 8:13 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO John Peloso	18172	968704	079 PCT
2. SGT Michelle Giglio	03459	954862	079 PCT
3. PO Maricel Zambrano	28020	972322	079 PCT
4. PO Masudur Khondokar	11575	974689	079 PCT
5. PO Jason McGowan	14655	938990	079 PCT
6. PO Jared Alexander	18730	974711	079 PCT
7. LT Avinash Patel	00000	940551	079 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Sabrina Caride	06470	976021	079 PCT
2. PO Oscar Cintomarciano	13597	974014	079 PCT

Officer(s)	Allegation	Investigator Recommendation
A . PO John Peloso	Off. Language: Police Officer John Peloso made remarks to § 87(2)(b) based upon the gender of § 87(2)(b)	A . Substantiated
B . PO John Peloso	Discourtesy: Police Officer John Peloso spoke discourteously to § 87(2)(b)	B . Substantiated
C . PO Masudur Khondokar	Force: Police Officer Masudur Khondokar used physical force against § 87(2)(b)	C . Within NYPD Guidelines
D . PO Jared Alexander	Force: Police Officer Jared Alexander used physical force against § 87(2)(b)	D . Within NYPD Guidelines
E . PO John Peloso	Force: Police Officer John Peloso used physical force against § 87(2)(b)	E . Within NYPD Guidelines
F . PO Masudur Khondokar	Force: Police Officer Masudur Khondokar used physical force against § 87(2)(b)	F . Within NYPD Guidelines
G . SGT Michelle Giglio	Force: Sergeant Michelle Giglio used physical force against § 87(2)(b)	G . Within NYPD Guidelines
H . PO Jared Alexander	Force: Police Officer Jared Alexander used physical force against § 87(2)(b)	H . Within NYPD Guidelines

Officer(s)	Allegation	Investigator Recommendation
I . PO Maricel Zambranomieles	Discourtesy: Police Officer Maricel Zambrano-Mieles spoke discourteously to § 87(2)(b)	I . Substantiated
J . PO Jared Alexander	Off. Language: Police Officer Jared Alexander spoke offensively regarding § 87(2)(b) actual or perceived disability.	J . Substantiated
K . PO Jared Alexander	Discourtesy: Police Officer Jared Alexander spoke discourteously to § 87(2)(b)	K . Substantiated
L . PO Maricel Zambranomieles	Discourtesy: Police Officer Maricel Zambrano-Mieles spoke discourteously to § 87(2)(b)	L . Substantiated
M . PO Maricel Zambranomieles	Abuse: Police Officer Maricel Zambrano-Mieles improperly used her body-worn camera.	M . Substantiated
N . PO Maricel Zambranomieles	Off. Language: Police Officer Maricel Zambrano-Mieles made remarks to § 87(2)(b) based upon the gender of § 87(2)(b)	N . Unable to Determine
O . PO Maricel Zambranomieles	Off. Language: Police Officer Maricel Zambrano-Mieles made remarks to § 87(2)(b) based upon the gender of § 87(2)(b)	O . Unable to Determine
P . PO Maricel Zambranomieles	Abuse: Police Officer Maricel Zambrano-Mieles threatened § 87(2)(b) with the use of force.	P . Unable to Determine
Q . LT Avinash Patel	Abuse: Lieutenant Avinash Patel threatened to arrest § 87(2)(b)	Q . Unable to Determine
R . PO Jason McGowan	Abuse: Police Officer Jason McGowan threatened to arrest § 87(2)(b)	R . Unable to Determine

Case Summary

On November 5, 2023, § 87(2)(b) filed this complaint via 311 on behalf of herself and her 12-year-old twins, § 87(2)(b) and § 87(2)(b) **(BR 01)**.

On November 4, 2023, at approximately 7:54 P.M., § 87(2)(b) and § 87(2)(b) had a dispute with § 87(2)(b) in front of the 79th Precinct stationhouse. Police Officers John Peloso, Maricel Zambrano-Mieles, Masudur Khondokar, Jared Alexander, Jason McGowan, and Sabrina Caride, and Sergeant Michelle Giglio, of the 79th Precinct, responded. § 87(2)(b) spat on PO Peloso, who then said, “Get that bitch” **(Allegation A and B: Offensive Language – Gender, Discourtesy – Word; substantiated)**. § 87(2)(b) ran away, and PO Khondokar, PO Alexander, and PO Peloso used physical force to apprehend her **(Allegations C, D, and E: Force - Physical Force, within NYPD guidelines)**. As § 87(2)(b) attempted to walk toward § 87(2)(b) PO Khondokar pushed him away **(Allegation F: Force - Physical Force, within NYPD guidelines)**. § 87(2)(b) walked back toward the scene, and Sgt. Giglio and PO Alexander used physical force to apprehend him **(Allegation G and H: Force – Physical Force, within NYPD guidelines)**. § 87(2)(b) and § 87(2)(b) were arrested for disorderly conduct **(BR 02, 03)**. § 87(2)(b) started crying, and PO Zambrano-Mieles said in a mocking tone, “Aw, now you’re crying?” **(Allegation I: Discourtesy – Word, substantiated)**. While being escorted by PO Alexander, § 87(2)(b) said, “You think I’m retarded.” PO Alexander responded, “Think you are” **(Allegations J and K: Offensive Language – Disability, Discourtesy – Word, substantiated)**. Inside the juvenile interrogation room, PO Zambrano-Mieles deactivated her body-worn camera (BWC) and did not reactivate it before saying to § 87(2)(b) “You’re a dickhead. You’re gonna shut the fuck up alright? You’re gonna shut the fuck up and-” **(Allegations L and M: Discourtesy – Word, Abuse of Authority – Improper Use of BWC; substantiated)**. PO Zambrano-Mieles allegedly said to § 87(2)(b) and § 87(2)(b) “Now y’all bitches is back up in here” **(Allegations N and O: Offensive Language – Gender, unable to determine)**. At some point prior to § 87(2)(b) and § 87(2)(b) release, PO Zambrano-Mieles allegedly said to § 87(2)(b) “You’re going to juvie, and you’re gonna get assaulted” **(Allegation P: Abuse of Authority – Threat of Force, unable to determine)**.

At approximately 10:18 P.M., § 87(2)(b) and § 87(2)(b) mother, § 87(2)(b) spoke with PO McGowan outside the stationhouse, and he allegedly said that Lt. Avinash Patel, of the 79th Precinct, told him that if § 87(2)(b) walked into the stationhouse, he should arrest her **(Allegations Q and R: Abuse of Authority – Threat of Arrest, unable to determine)**. Upon their release, Lt. Patel allegedly said to § 87(2)(b) and § 87(2)(b) “If your mom comes back in the precinct, she’s gonna be right here with you” **(within Allegation R)**.

The investigation received BWC footage recorded by PO Peloso **(BR 04)**, PO Zambrano-Mieles **(BR 05)**, PO Khondokar **(BR 06)**, PO Alexander **(BR 07)**, Sgt. Giglio **(BR 08)**, Lt. Patel **(BR 09)**, PO McGowan **(BR 10)**, and Police Officer Sabrina Caride **(BR 11)** of the 79th Precinct. The investigation also received surveillance footage from the 79th Precinct stationhouse, including footage capturing the front of the stationhouse **(BR 12, 13)**.

Findings and Recommendations

Allegation (A) Offensive Language: Police Officer John Peloso made remarks to § 87(2)(b) based upon the gender of § 87(2)(b)

Allegation (B) Discourtesy: Police Officer John Peloso spoke discourteously to § 87(2)(b)

Allegation (C) Force: Police Officer Masudur Khondokar used physical force against § 87(2)(b)

Allegation (D) Force: Police Officer Jared Alexander used physical force against § 87(2)(b)

Allegation (E) Force: Police Officer John Peloso used physical force against § 87(2)(b)

Allegation (F) Force: Police Officer Masudur Khondokar used physical force against § 87(2)(b)

Allegation (G) Force: Sergeant Michelle Giglio used physical force against § 87(2)(b)

Allegation (H) Force: Police Officer Jared Alexander used physical force against § 87(2)(b)

§ 87(2)(b) (BR 14) stated that § 87(2)(b) was harassing her, § 87(2)(b) and four other youths, so they went to the 79th Precinct stationhouse to report § 87(2)(b). § 87(2)(b) followed them to the stationhouse and spat at them, so § 87(2)(b) spat back at her. PO Peloso stepped in between § 87(2)(b) and § 87(2)(b) which caused the spit to hit PO Peloso. PO Peloso said, “Get that little bitch,” and § 87(2)(b) ran away. PO Peloso caught up to § 87(2)(b) grabbed the ends of her braids, and pulled her backwards, which caused her to step backwards but not fall. PO Peloso pulled her hands behind her back, forcefully slammed her against the hood of an unmarked police car, and handcuffed her. At some point after § 87(2)(b) was apprehended, but before she was escorted into the stationhouse, PO Peloso said to § 87(2)(b) older sister, “I did call her a bitch.” § 87(2)(b) told § 87(2)(b) to go get their mom, so he started to run home. However, a female officer, whom § 87(2)(b) believed to be PO Zambrano-Mieles, said, “We got another one,” grabbed him by his hoodie, and pulled him backwards, causing him to fall backwards and hit his right knee and ankle on the ground, which later turned black and blue. The female officer lifted § 87(2)(b) off the ground and handcuffed him. While PO Peloso escorted § 87(2)(b) to the stationhouse, PO Peloso said, “I got that little bitch. I got her. I got her.”

§ 87(2)(b) (BR 15) stated that he was standing by a police car when he saw § 87(2)(b) being arrested. He said, “Why y’all got my twin sister?” Officers grabbed § 87(2)(b) by the arms and body-slammed her into the hood of a car, denting the hood. § 87(2)(b) attempted to run away, and a Black male officer grabbed and handcuffed him. § 87(2)(b) twisted his ankle and sustained bruising on his wrists and soreness to his hands. At some later point after he and his sister were released, while inside of the corner store at Greene Avenue and Tompkins Avenue, § 87(2)(b) was with his cousin when he asked PO Peloso why he called his sister a “little bitch,” and PO Peloso said, “Yes I said that.”

The following video footage is presented in generally chronological order for the purpose of clarity:

Per PO Peloso's BWC footage (**BR 04**), at runtime 00:39, § 87(2)(b) and § 87(2)(b) spit toward § 87(2)(b). At 00:53, spit flies from the direction of the group of children and hits PO Peloso. § 87(2)(b) runs away, and PO Peloso chases her. At 00:58, § 87(2)(b) and § 87(2)(b) run into the street. At 01:00, PO Peloso says, "Get that bitch." PO Khondokar and PO Alexander run after and grab § 87(2)(b) which stops her from running. § 87(2)(b) runs away. PO Khondokar holds onto § 87(2)(b) from her left side, and PO Alexander holds onto her from her right side.

In a slow-motion subclip from PO Peloso's BWC footage (**BR 39**), at runtime 00:15, PO Peloso puts his hand on the back of § 87(2)(b) neck area, where her braids fall, with his left hand. He then holds onto § 87(2)(b) right arm with his right hand.

In a slow-motion subclip from PO Khondokar's BWC footage (**BR 38**), at runtime 00:20, PO Peloso releases his left hand from the back of § 87(2)(b) neck within one second of grabbing the back of her neck area.

Per PO Peloso's BWC footage (**BR 04**), at runtime 01:05, PO Alexander and PO Peloso push § 87(2)(b) against the hood of an unmarked police car. At 01:07, PO Peloso has his right forearm against § 87(2)(b) back. PO Peloso says, "Hit my fuckin' head. Yeah, get the other one, bro, let's go. Spit in my fuckin' head." PO Peloso then handcuffs § 87(2)(b).

Per surveillance footage from the 79th Precinct roof (**BR 12**), while handcuffing § 87(2)(b) at runtime 01:55:19, § 87(2)(b) torso moves to the left, and PO Peloso's body moves with hers and pushes her torso against the car again.

Per Sgt. Giglio's BWC footage (**BR 08**), at runtime 01:04, § 87(2)(b) walks toward where § 87(2)(b) is being handcuffed. Sgt. Giglio touches his left bicep as he continues to walk forward. PO Khondokar pushes § 87(2)(b) in his chest with his left hand, and Sgt. Giglio pulls § 87(2)(b) backwards with her right hand by grabbing the left side of his torso. She also grabs hold of his left wrist or forearm. PO Khondokar tells § 87(2)(b) to back up twice. At 01:05, § 87(2)(b) says something unintelligible that ends with, "Nah, bro." PO Khondokar pushes § 87(2)(b) in his chest and continues to tell him to back up. An adult female civilian who was with § 87(2)(b) and § 87(2)(b) pulls § 87(2)(b) away. At 01:10, § 87(2)(b) re-approaches the officers with his fists clenched. The adult female civilian follows behind him and says, "Go home, little boy." At 01:12, Sgt. Giglio grabs § 87(2)(b) hoodie collar with both hands. The adult female civilian tries to pull § 87(2)(b) backwards.

Per PO Peloso's BWC footage (**BR 04**), at 01:18, PO Peloso and PO Zambrano-Mieles escort § 87(2)(b) toward the stationhouse. At 01:24, PO McGowan asks what happened, and PO Peloso says, "She just spit in my fuckin' face." The officers then escort § 87(2)(b) to the desk.

Per PO Alexander's BWC footage (**BR 07**), at runtime 01:01, Sgt. Giglio holds onto § 87(2)(b) hoodie collar with both hands and pulls him toward her and out of the civilian's grasp. § 87(2)(b) uses his left hand to grab Sgt. Giglio's right wrist or hand, which is still holding onto his collar. PO Alexander blocks § 87(2)(b) torso with his arm, stopping him from moving forward toward § 87(2)(b). At 01:03, PO Alexander uses his right hand to pull on the back of § 87(2)(b) hoodie and holds onto

§ 87(2)(b) left arm around the elbow. PO Alexander then places § 87(2)(b) against the parked vehicle and handcuffs him. At 01:19, PO Alexander and PO Khondokar escort § 87(2)(b) into the stationhouse.

Per surveillance footage from the 79th Precinct roof (**BR 12**), which captures a different angle of Sgt. Giglio pulling § 87(2)(b) by his hoodie collar, at runtime 01:55:24, Sgt. Giglio pulls § 87(2)(b) toward her, and he appears to lose his balance. At 01:55:27, Sgt. Giglio pushes § 87(2)(b) away from her with two hands as PO Alexander pulls § 87(2)(b) toward him.

PO Peloso (**BR 16**) stated that he was inside the stationhouse when he heard a large disturbance of screaming and yelling outside. A group of youths, including § 87(2)(b) and § 87(2)(b) were engaged in a dispute with § 87(2)(b) and officers. The children cursed at § 87(2)(b) and called her derogatory names, and § 87(2)(b) responded by yelling and cursing. Before activating his BWC, PO Peloso told the youths, “You guys got to leave. This is not worth it.” Both § 87(2)(b) and § 87(2)(b) were spitting. § 87(2)(b) spit on PO Peloso’s forehead and hair, then ran away from PO Peloso. He caught up to her as she stood next to a car, grabbed her arms, and handcuffed her. During this process, PO Peloso and § 87(2)(b) were “on the car, basically,” but PO Peloso never pushed her against the car. PO Peloso stated that it was possible that he grabbed § 87(2)(b) hair by accident while attempting to grab the back of her arms, and if he did, it was not intentional. § 87(2)(b) resisted a bit by flailing her arms and moving her body (particularly her shoulders) in an attempt to prevent PO Peloso from handcuffing her. Upon being shown surveillance footage from the 79th Precinct stationhouse roof (**BR 12**), PO Peloso stated that when § 87(2)(b) pushed her shoulders and upper back backwards toward him, he made sure he moved her forward and put her in handcuffs. PO Peloso did not specifically push § 87(2)(b) against the car. PO Peloso did not say, “Get that bitch,” noting that when he used the word “bitch,” it was in reference to his hair, and that he did not say “bitch” to refer to § 87(2)(b). PO Peloso noted that he used the word “bitch” because he was upset about having spit all over his hair. Upon being shown his own BWC footage (**BR 04**), twice, between runtimes 00:58 and 01:02, PO Peloso acknowledged using the word “bitch” but did not hear what words, if any, he used before or after the utterance. PO Peloso did not hear himself say, “Get that bitch.” PO Peloso never referred to § 87(2)(b) as a “bitch” at any point during the incident, and at no point did PO Peloso say, “I did call § 87(2)(b) a bitch.” PO Peloso had no recollection of any interaction with a civilian about his use of the word “bitch.”

PO Alexander’s (**BR 17**) statement was generally consistent with the BWC footage. PO Alexander grabbed § 87(2)(b) left arm, which allowed PO Peloso to handcuff her, which he assisted with. PO Peloso and PO Alexander placed § 87(2)(b) against a parked car because officers are trained that it is tactically prudent to do so when handcuffing someone. § 87(2)(b) was upset, but PO Alexander did not remember what § 87(2)(b) was doing with her body while he and PO Peloso handcuffed her.

PO Khondokar (**BR 34**) stated that he did not recall grabbing § 87(2)(b) in any way. PO Khondokar did not recall pushing § 87(2)(b). He put his hand on § 87(2)(b) chest after his BWC fell off to try and make space so he could bend over and pick up his BWC safely. PO Khondokar then assisted in handcuffing § 87(2)(b).

Per NYPD Administrative Guide Procedure 304-06 (**BR 18**), officers are prohibited from using discourteous or disrespectful remarks regarding another person’s gender or gender identity/expression.

NYPD Patrol Guide Procedure 200-02 (BR 19) requires that officers render their services with courtesy and civility. Officers must maintain a higher standard of integrity than is generally expected of others.

Per PD v. Pichardo, DCT Case Number 2015-15012 (BR 20), officers may speak discourteously within the context of a dynamic situation over which they are trying to gain control, but they may not make statements that serve no legitimate purpose but to belittle a civilian.

§ 87(2)(b) stated that PO Peloso said, “Get that little bitch.” § 87(2)(g)
§ 87(2)(b) his own BWC footage captured him saying, “Get that bitch,” immediately after § 87(2)(b) ran away. § 87(2)(g)

Therefore, it is recommended that
Allegations A and B be substantiated.

Per NYPD Patrol Guide Procedure 221-01 (BR 21), force may be used when it is reasonable to place a person in custody or to prevent escape from custody. Any application or use of force must be reasonable under the circumstances, and de-escalation must be prioritized whenever possible. Members of service must consider the following criteria regarding the reasonable use of force: the nature and severity of the crime/circumstances; actions taken by the subject; duration of the action; immediacy of the perceived threat or harm to the subject, and/or bystanders; whether the subject is actively resisting custody; whether the subject is attempting to evade arrest by flight; number of subjects in comparison to the MOS; subject’s violent history, if known; presence of hostile crowd or agitators; subject apparently under the influence of a stimulant/narcotic which would affect pain tolerance or increase the likelihood of violence.

§ 87(2)(g)
PO
Khondokar’s BWC footage shows that PO Peloso releases his hand from her hair almost immediately and does not appear to deliberately pull it. § 87(2)(g)

Therefore, it is recommended that
Allegations C, D, E, F, G, and H be closed as within NYPD guidelines.

Allegation (I) Discourtesy: Police Officer Maricel Zambrano-Mieles spoke discourteously to

§ 87(2)(b)

Allegation (J) Offensive Language: Police Officer Jared Alexander spoke offensively regarding

§ 87(2)(b)

actual or perceived disability.

Allegation (K) Discourtesy: Police Officer Jared Alexander spoke discourteously to

§ 87(2)(b)

Allegation (L) Discourtesy: Police Officer Maricel Zambrano-Mieles spoke discourteously to

§ 87(2)(b)

Allegation (M) Abuse of Authority: Police Officer Maricel Zambrano-Mieles improperly used her body-worn camera.

Allegation (N) Offensive Language: Police Officer Maricel Zambrano-Mieles made remarks to

§ 87(2)(b)

based upon the gender of

§ 87(2)(b)

Allegation (O) Offensive Language: Police Officer Maricel Zambrano-Mieles made remarks to

§ 87(2)(b)

based upon the gender of

§ 87(2)(b)

Allegation (P) Abuse of Authority: Police Officer Maricel Zambrano-Mieles threatened

§ 87(2)(b)

with the use of force.

§ 87(2)(b) (BR 14) stated that she and § 87(2)(b) were escorted into the juvenile interrogation room of the stationhouse, where PO Zambrano-Mieles said, “Now y’all bitches is back up in here.” § 87(2)(b) asked PO Zambrano-Mieles who she was talking to. PO Zambrano-Mieles said, “Who the fuck are you talking to?” § 87(2)(b) said, “You.” PO Zambrano-Mieles then left the room. At some point, PO Zambrano-Mieles said to § 87(2)(b) “Now you crying, you wasn’t crying when we was outside.” Prior to § 87(2)(b) and § 87(2)(b) release, PO Zambrano-Mieles told § 87(2)(b) “Your brother going home, and you’re going to juvie, and you’re gonna get assaulted.”

§ 87(2)(b) (BR 15) stated that while in the juvenile interrogation room, one minute after turning off her BWC, PO Zambrano-Mieles said to § 87(2)(b) “Don’t be scared now, little bitch.” Then, she placed § 87(2)(b) on a bench and said, “Now you understand,” and a statement to the effect of, “Until they sit properly, their paperwork will not get done.” PO Zambrano-Mieles said that § 87(2)(b) was going to juvie.

The following video footage is presented in generally chronological order for the purpose of clarity:

Per PO Peloso’s BWC footage (BR 04), at runtime 05:55, PO Peloso escorts § 87(2)(b) into the area behind the desk as she is crying. As § 87(2)(b) walks by PO Zambrano-Mieles, PO Zambrano-Mieles says, “Aw, now you’re crying?” At 06:15, PO Peloso escorts § 87(2)(b) into the juvenile interrogation room.

PO Zambrano-Mieles’ BWC footage (BR 05) is generally consistent with PO Peloso’s. She deactivates her BWC before § 87(2)(b) is escorted into the juvenile interrogation room.

Per PO Alexander’s BWC footage (BR 07), at runtime 07:50, while PO Alexander escorts § 87(2)(b) to the juvenile interrogation room, § 87(2)(b) starts to turn down the wrong hallway, and PO Alexander pulls him by the arm toward the correct direction. PO Alexander says § 87(2)(b) does not know where he is going. § 87(2)(b) says, “I do. You all right here. You think I’m retarded.” PO Alexander says, “Think you are.” PO Alexander then escorts § 87(2)(b) into the juvenile interrogation room and

sits him next to § 87(2)(b). At 08:15, PO Zambrano-Mieles asks if § 87(2)(b) and § 87(2)(b) are siblings. § 87(2)(b) says they are twins. PO Zambrano-Mieles says, “You don’t look like twins,” in a mocking tone. § 87(2)(b) says, “I think we don’t.” § 87(2)(b) says, “You’re an asshole.” At 08:26, PO Zambrano-Mieles says, “You’re a dickhead. You’re gonna shut the fuck up, alright? You’re gonna shut the fuck up and-” Her statement is cut off by PO Alexander deactivating his BWC.

No video footage captures PO Zambrano-Mieles say anything to the effect of, “‘Now y’all bitches is back up in here,” “Don’t be scared now little bitch,” “Who the fuck are you talking to?”, or “Your brother going home, and you’re going to juvie, and you’re gonna get assaulted.”

PO Zambrano-Mieles (BR 22) stated that she told § 87(2)(b) “Aw, now you’re crying?” because § 87(2)(b) acted one way outside (e.g., spitting on PO Peloso) and then completely changed her demeanor once she was detained. PO Zambrano-Mieles did not make this statement to belittle § 87(2)(b). PO Zambrano-Mieles escorted § 87(2)(b) to the juvenile interrogation room then deactivated her BWC. She did not have any subsequent interaction with § 87(2)(b) or § 87(2)(b) and was not involved in their release. PO Zambrano-Mieles acknowledged saying, “You’re a dickhead,” and stated that § 87(2)(b) used the word, “dickhead” first. PO Zambrano-Mieles said this because § 87(2)(b) and § 87(2)(b) were not answering her questions, and she had to repeatedly ask for their information. PO Zambrano-Mieles said “dickhead” to get their attention; it was not intended as a personal slight or said to belittle § 87(2)(b) and § 87(2)(b). PO Zambrano-Mieles acknowledged saying to § 87(2)(b) and § 87(2)(b) “You’re gonna shut the fuck up,” to get their attention. There was no other reason to make this comment, nor was there any particular reason to use profanity in this statement. PO Zambrano-Mieles acknowledged that she said, “You’re a dickhead” and “You’re gonna shut the fuck up” after deactivating her BWC because she was already leaving the room and concluding her interaction with § 87(2)(b) and § 87(2)(b). PO Zambrano-Mieles did not say anything to § 87(2)(b) and § 87(2)(b) after telling them, “You’re gonna shut the fuck up.” At no other point did PO Zambrano-Mieles use the word “fuck” while speaking with § 87(2)(b) or § 87(2)(b). At no other point than the instances noted above did PO Zambrano-Mieles use profanity while speaking with § 87(2)(b) or § 87(2)(b). PO Zambrano-Mieles did not ever say to § 87(2)(b) and § 87(2)(b) “All y’all bitches is back up in here.” PO Zambrano-Mieles never used the words “bitch” or “bitches” with § 87(2)(b) and § 87(2)(b) and did not hear any other officer do so. PO Zambrano-Mieles never told § 87(2)(b) “Who the fuck are you talking to?” PO Zambrano-Mieles never told § 87(2)(b) anything to the effect of, “Your brother is going home and you are going to juvie, and you’re gonna get assaulted.”

PO Alexander (BR 17) stated that as he was escorting § 87(2)(b) to the juvenile interrogation room, § 87(2)(b) spoke in a manner that suggested to PO Alexander that he was familiar with being processed in a stationhouse as a juvenile (e.g., “This is not nothing. We’re gonna get a juvie report and be out of here”). PO Alexander said it was possible that § 87(2)(b) said to him, “You think I’m retarded?” PO Alexander responded that he responded to such a comment by saying, “Think you are,” while noting that he said it in a joking way. Other than making a joke, PO Alexander had no other reason for this response. PO Alexander did not intend to demean or belittle § 87(2)(b). PO Alexander did not know anything about § 87(2)(b) mental status or health. PO Alexander deactivated his BWC as he walked out of the juvenile room. PO Alexander did not recall how long, if at all, he remained in the juvenile room after deactivating his BWC and was not sure if PO Zambrano-Mieles

continued speaking with § 87(2)(b) and § 87(2)(b) after he deactivated his BWC.

PO Khondokar (BR 34) stated that he was the officer assigned to guard § 87(2)(b) and § 87(2)(b). He did not recall if PO Zambrano-Mieles or Lt. Patel spoke with § 87(2)(b) and § 87(2)(b) between when they were first lodged in the juvenile interrogation room and when they were released.

Neither PO Peloso (BR 16), PO Alexander (BR 17), Lt. Patel (BR 23), nor PO Khondokar (BR 34) stated that they heard PO Zambrano-Mieles say, “Who the fuck are you talking to?” or “Your brother is going home and you’re going to juvie, and you’re gonna get assaulted,” or heard her refer to § 87(2)(b) and/or § 87(2)(b) using the term “bitch.”

NYPD Patrol Guide Procedure 200-02 (BR 19) requires that officers render their services with courtesy and civility. Officers must maintain a higher standard of integrity than is generally expected of others.

Per PD v. Pichardo, DCT Case Number 2015-15012 (BR 20), officers may speak discourteously within the context of a dynamic situation over which they are trying to gain control, but they may not make statements that serve no legitimate purpose but to belittle a civilian.

Per NYPD Administrative Guide Procedure 304-06 (BR 18), officers are prohibited from using discourteous or disrespectful remarks regarding another person’s disability.

§ 87(2)(g)

[REDACTED]

it is recommended that **Allegations I and L** be substantiated.

§ 87(2)(g)

[REDACTED]

Therefore, it is recommended that **Allegations J and K** be substantiated.

NYPD Patrol Guide Procedure 212-123 (BR 24) requires that officers activate their BWCs during any interaction that escalates to become adversarial.

§ 87(2)(g)

It is therefore recommended that Allegation M be substantiated.

§ 87(2)(g)

it is recommended that Allegations N, O, and P be closed as unable to determine.

Allegation (Q) Abuse of Authority: Lieutenant Avinash Patel threatened to arrest § 87(2)(b)

Allegation (R) Abuse of Authority: Police Officer Jason McGowan threatened to arrest

§ 87(2)(b)

It is undisputed that while § 87(2)(b) and § 87(2)(b) were in custody, at approximately 8:00 P.M., § 87(2)(b) entered the stationhouse and was told to leave by Lt. Patel due to the volume of her voice, and she complied.

§ 87(2)(b) (BR 25) stated that she went home after being told to leave the stationhouse, then at approximately 10:00 P.M., she went back to the stationhouse. She spoke with a white male officer—in his mid-30s to early 40s, was short with a heavy build, had black hair in a ponytail and a small black moustache, and was dressed in a navy-blue uniform—who was standing outside. The officer said that Lt. Patel told him that if § 87(2)(b) walked into the precinct, he should arrest her.

§ 87(2)(b) (BR 14) stated that 10 minutes before she and § 87(2)(b) were released, a white male officer who was approximately 23 years old, stood 6'0" tall, had a muscular build and blonde hair, wore glasses, looked very similar to PO Peloso, and was dressed in a white uniform shirt said, "If your mom comes back in the precinct, she's gonna be right here with you."

Per surveillance footage from the front of the 79th Precinct stationhouse (BR 13), at runtime 01:18:24, at 10:18 P.M., § 87(2)(b) approaches the front of the stationhouse, and PO McGowan appears to say something to her. At 01:18:31, § 87(2)(b) points into the stationhouse. At 01:18:43, PO McGowan gestures using both hands as if to indicate something or someone exiting the stationhouse. PO McGowan and § 87(2)(b) continue to speak, and PO McGowan looks into the stationhouse multiple times. At 01:19:39, PO McGowan points toward the inside of the stationhouse. At 01:20:14, PO McGowan points down toward the ground. At 01:20:39, PO McGowan points into the stationhouse. At 01:22:22, § 87(2)(b) walks away from the stationhouse and does not appear for the rest of the footage. Between 9:00 P.M. and 10:30 P.M., § 87(2)(b) does

Per PO McGowan's BWC footage (**BR 10**), at runtime 01:15, at 10:53 P.M., as PO McGowan is unhandcuffing § 87(2)(b) and § 87(2)(b) Lt. Patel approaches the juvenile interrogation room, tells PO McGowan to walk § 87(2)(b) and § 87(2)(b) out, and tells § 87(2)(b) and § 87(2)(b) that their father is here. At 02:06, § 87(2)(b) and § 87(2)(b) walk out of the juvenile interrogation room with Lt. Patel, PO Khondokar, and PO McGowan.

PO McGowan (BR 31) acknowledged that he spoke with § 87(2)(b) in front of the stationhouse, and she was irate and angry (e.g., yelling about how the officers could not arrest juveniles). PO McGowan tried to explain that juveniles can be arrested and tried to calm her down. He did not recall any further details of their conversation or how it ended. He denied threatening to arrest § 87(2)(b) hearing Lt. Patel do so, telling her that she would be arrested if she went into the stationhouse, or telling her that a supervisor told him this. § 87(2)(g)

PO Khondokar (**BR 34**) did not recall hearing Lt. Patel say, “If your mom comes back in the precinct, she’s gonna be right here with you.” He did not recall if Lt. Patel had any conversation with § 87(2)(b) and § 87(2)(b) between when they were lodged and when they were released.

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] it is recommended that Allegations Q and R be closed as **unable to determine**.

- This is the first CCRB complaint to which § 87(2)(b) and § 87(2)(b) have been a party (**BR 35, 36, 27**).
- PO Peloso has been a member of service for four years and has been a subject in nine other CCRB complaints and 28 other allegations, of which four were substantiated:
 - § 87(2)(g)

